

SENATE No. 1025

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act streamlining housing permitting.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>3/17/2025</i>

SENATE No. 1025

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 1025) of Bruce E. Tarr for legislation to streamline housing permitting. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 903 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act streamlining housing permitting.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 43D of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the word “selectmen.”, in line 6, the
3 following words:-

4 “Housing Priority Zone”, a privately or publicly owned property, a zoning district or a
5 zoning overlay district zoned and designated for the development or redevelopment of housing
6 which:

7 1. Exceeds the allowable unit density by a minimum of 50 percent greater than the
8 density allowed prior to designation as a priority zone, and shall in no case have a lot size greater
9 than ½ acre;

2. Includes a minimum of 40% of its units as affordable housing, as defined in Section 2 of chapter 40R;

3. May incorporate the use of zoning methods known as cluster development, as defined in section 9 of chapter 40A of the General Laws, or open space residential design; and

4. Is designated a priority development site by the board, in consultation with the Department of Housing and Community Development.

SECTION 2. Chapter 43D, as so appearing, is hereby further amended by inserting after section 16 the following sections:-

Section 17. For the purposes of determining consistency with the definition of “consistent with local needs” contained in section 20 of chapter 40B of the General Laws, a housing unit developed in a housing priority zone shall be credited at the rate of 1.75 units upon the issuance of a building permit.

Section 18. Any individual or family residing in affordable housing within a housing priority zone shall report to the local administrative office responsible for housing development and administration not less than once every three years to certify that the property has not been sold or otherwise transferred to an individual or family who exceeds the income limits of the affordable housing program. If said property is sold or otherwise transferred to an individual or family who do not exceed the income limits, then the reporting responsibility shall devolve to the new owner or owners of the property.

Section 19. Notwithstanding any general or special law to the contrary, the real estate tax assessed to a property designated as a priority development site shall be on a pro rata basis to the

- 31 days remaining in the fiscal year from the date of the issue of the temporary or permanent
- 32 occupancy permit to the end of the fiscal year.